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## Appeal Decision

Site visit made on 25 July 2026

by **A. J. Boughton MA (IPSD) Dip.Arch. Dip.(Conservation) RIBA MRTPI**

an Inspector appointed by the Secretary of State

Decision date: **14 September 2026**

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**Appeal Ref: 6008803**

**18 Beech Hill Enfield EN4 0JP**

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Mr Osman Ismail against the decision of The Council of the London Borough of Enfield.
  - The application Ref is 26/0548/FUL.
  - The development proposed is redevelopment of site with erection of 4 x detached houses each with detached double garages and communal refuse/recycle bin store.
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### Decision

1. The appeal is dismissed.

### Preliminary Matters

2. In my determination of this appeal I have had regard to the revised National Planning Policy Framework which was published on 17 August 2026. The parties have been allowed opportunity to comment upon relevant changes.
3. The appeal site is not in proximity to any SSSI or protected Site or Area but is a very large suburban plot<sup>1</sup> adjacent to open green belt land currently in use as a golf course. The appeal site is now, in large part, nature-invaded with tall grasses and other elements of ecological potential such as stacks of felled tree trunks and wild growth. The large dwellinghouse proposed to be demolished also appears to have been vacant for a significant period<sup>2</sup> and has features such as timber cladding and eaves detailing which may present opportunity for roosting bats. Although the Council suggest the absence of a Preliminary Ecological Appraisal (or any suitable ecological surveys) could be addressed by condition I consider this to be unsafe given the duties imposed by The Conservation of Habitats and Species Regulations 2017 and established case law. I have therefore introduced this as a Main Issue.

### Main Issues

4. The main issues are:
  - the effect of the development upon the established residential character of the area, having regard to the appearance of the street scene, and

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<sup>1</sup> Close to one acre in area (4000m<sup>2</sup>)

<sup>2</sup> The appellant states residential use ceased in March 2024.

- whether the development would be provided with safe and suitable access for pedestrians, and
- the effect of the development upon protected species and habitat.

## Reasons

### *Character and Appearance*

5. The appeal site, 18 Beech Hill (No.18) is a large mid-twentieth century dwelling of individual design, built at a scale which largely fills the width of its substantial plot in an established residential area. It appears to have been unoccupied for a significant period of time and the extensive garden is overgrown and neglected. Beech Hill is generally populated with large family houses in substantial plots, which in the case of No.18 and immediate neighbours, extends southward to a rear boundary shared with the Hadley Wood Golf Course which lies within the Metropolitan Green Belt. The generally large plots in this part of Beech Hill provide an open-textured and low-density development pattern, historically presenting large single dwellings aligned with, but set back from, the road frontage. Overall the area presents a spacious, verdant, suburban environment in which the general frontage alignment of single dwellings plays a significant role. This strong character has evolved with instances of housing to the rear being serviced by access drives between these frontage properties, also large replacement dwellings and some apartment blocks.
6. The Hadley Wood Neighbourhood Plan 2022-2039 (HWNP) acknowledges the pressures for redevelopment or conversion of larger family homes to flatted development, identifying the effect of this on the character of the HWNP area and the supply of family homes. This pressure is evident on the south side of Beech Hill where No.22 Beech Hill<sup>3</sup>, a close neighbour of the appeal site, has been redeveloped with two, three-storey, flatted blocks in a tandem arrangement, retaining a single street entrance with shared underground car parking. In that regard it is material that the HWNP was 'made' after the permission for No.22 had been granted and that policies within the HWNP were referenced in a recent disallowed appeal for a similar flatted development at No.26 Beech Hill.
7. The proposed development would replace the existing very large house with four substantial detached houses, two of these would be positioned on the footprint of the existing house and, within the residential curtilage to the rear, a further two detached houses broadly aligned with the nearby rear block of No.22 and sitting between that building and a detached house which is located at the rear of 10-12 Beech Hill. That house is of broadly similar size to the proposed dwellings.
8. Policy DMD 83 of the Enfield Development Management Document Adopted November 2014 (Enfield DMD) indicates that development adjacent to the Green Belt should not increase the visual dominance and intrusiveness of the built form by way of by way of height, scale and massing. Policies DMD5 of the Enfield DMD, Policy CP30 of the Enfield Plan Core Strategy 2010-2025 (CS), and Policy D3 of the London Plan, seek, amongst other things, to ensure that development would reinforce local distinctiveness. These policies are amplified with specific provisions in the HWNP.

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<sup>3</sup> Permission granted July 2018 prior to the making of the HWNP

9. I note the Council suggest that the development of four houses would 'erode the pattern of development and (cause) the loss of generous gardens due to plot subdivision'. However, the revised National Planning Policy Framework (August 2026) (Framework) at Section 12; Making Effective Use of Land is directed at easing approval for housing within settlements including development of residential curtilages. Paragraph L2 (1) requires substantial weight to be given to the benefits of a development proposal which (at (d)) '*... creat(es) additional homes.....through sensitive redevelopment or additional development within existing plots....*'. Policy DMD7 of the Enfield DMD (Development of Garden Land), appears to be inconsistent with the positively framed approach now taken in the Framework and therefore attracts little weight in this matter.
  
10. With regard to this change in emphasis of the Framework, provisions at sub-paragraph (iii) of L2(1) in the Framework make clear that where development would occupy residential curtilages it should '*not occupy more than twice the footprint of all existing buildings on the site.....unless additional development can be accommodated without harm to the overall character of the area*'. The proposal would more than double the existing footprint but the existing plot is very large and the proposed buildings and their spacing would not be substantially different to that found nearby. In particular the rear pair of houses would not be of a height that would dominate the open land to the rear or, due to the slight fall in the level of the land, be significant in the street scene, nor would it dominate the adjacent green belt when considered in context with other existing development. I therefore find no conflict with Policy HW12 of the HWNP which requires that development should have regard to the prevailing building height or with Policy DMD 83 of the Enfield DMD as previously identified.
  
11. I therefore consider that the development would not harm the overall character of the area, achieving the fine balance sought in the development plan between allowing additional development that is necessary to support housing delivery in tension with the protection of established character. This aligns with the current Framework guidance to make effective use of land within settlements.

### *Pedestrian Access*

12. The proposal shows a single pedestrian gate access and the Council suggest the absence of a discrete pedestrian route within the site to the two rear houses would not be safe. This would appear to conflict with generally accepted principles of estate development where shared surface driveways for at least two dwellings are commonly approved. Although the rectilinear layout might encourage inappropriate speed, given the small number of dwellings involved and the generous size of the site, it would clearly be possible to apply conditions as to the details of hard and soft landscaping in relation to layout, hard surfacing and other materials such that vehicle and pedestrian circulation within the site is safe and suitable, also addressing other matters such as cycle parking and mobility. On that basis I find no conflict with Policies DMD 8 and DMD 45 of the Enfield DMD which taken together, seek adequate access, parking and refuse storage.

## *Ecology*

13. The appeal site no longer has the character of a suburban garden but is a long-neglected, large land parcel adjacent to open land in the green belt. It is nature-invaded with tall grasses and other elements such as stacks of felled tree trunks and wood debris. This is an environment which Government guidance suggests may provide habitat for protected species such as wild birds, badgers, reptiles and great crested newts; I also consider the existing empty house that is proposed to be demolished may provide opportunities for bat roosts.
14. The Council confirm that there has been no Preliminary Ecological Assessment (PEA) of the site nor any specific reports such as bat surveys, consequently there is no evidence as to the likely absence of European protected species (EPS) which have full protection under The Conservation of Habitats and Species Regulations 2017. Unlicensed activity causing harm to such species or their habitat would be contrary to law but none of these matters are addressed in the submissions before me. A grant of permission subject to a condition requiring such assessment and surveys to be carried out as the Council suggest<sup>4</sup> would therefore be unsafe in that were protected species subsequently found to be present on site it is not apparent that suitable mitigation measures would be consistent with a grant of consent for what is currently proposed.

## **Conclusion.**

15. I have concluded, subject to suitable conditions, that the proposal would accord with the development plan with regard to the first and second main issues, in particular, that the proposal would not unduly harm the established residential character of this part of Beech Hill and would accord with Policies DMD5 and DMD81 of the Enfield DMD, Policy CP30 of the CS and Policy D3 of the London Plan, which, together seek to ensure development is sensitive to the characteristics, appearance and setting of the surrounding area. However, notwithstanding these conclusions my observations as to the nature-invaded character of this former residential garden with evidence to address the potential risk of harm to protected species entirely absent from the submissions before me, directs that the appeal cannot succeed.

*Andrew Boughton*

INSPECTOR

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<sup>4</sup> Officer Report 6.60